

CHAPTER 32.

An Act to amend the Destructive Insects and Pests Acts, 1877 and 1907. [22nd December 1927.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) An order under the Destructive Insects Act, 1877, as amended by the Destructive Insects and Pests Act, 1907 (which Act as so amended is hereinafter referred to as the principal Act), may—

Amend-
ments of
Acts.
40 & 41 Vict.
c. 68.
7 Edw. 7.
c. 4.

- (a) enable any inspector authorised by the Minister of Agriculture and Fisheries to remove or destroy, or cause to be removed or destroyed, any crop infected with an insect which has been introduced into Great Britain specified in the order, being a destructive insect within the meaning of the principal Act, or any crop to or by means of which the insect is likely to spread, and generally to take such steps as he may think expedient in connection with any crop for preventing the spreading of any such destructive insect, and to enter on any lands for any of the purposes aforesaid, or for any examination or inquiry authorised by the order, or any other purpose of the order;
- (b) impose in respect of any certificate given in pursuance of the order after an inspection such fee or other charge as, with the consent of the Treasury, may be prescribed by the Minister;
- (c) impose as a maximum penalty in respect of a second or subsequent offence against the order a fine of fifty pounds.

(2) The Minister may out of moneys provided by Parliament pay compensation (to be ascertained in accordance with the provisions of the principal Act) in respect of any crop removed or destroyed by or under the instructions of an inspector authorised by him, and any other expenses incurred by him in the execution of the principal Act:

Provided that the amount of the compensation and expenses so paid shall not in any one year, without the consent of the Treasury, exceed the sum of two thousand pounds.

(3) Notwithstanding anything in the Summary Jurisdiction Acts, proceedings for an offence against an order under the principal Act may, where the offence is an offence in connection with the movement, sale, consignment or planting of potatoes, be instituted at any time within twelve months from the day on which the alleged offence was committed.

(4) Paragraphs (1) and (2) of section three of the principal Act, and in paragraph (3) thereof the words "in ordinary circumstances," are hereby repealed.

(5) For the purposes of the principal Act, the expression "insect" shall include bacteria and other vegetable or animal organisms, and any agent causative of a transmissible crop disease; and the expression "crop" shall include seed, plant, or any part thereof.

Short title
and extent.

2.—(1) This Act may be cited as the Destructive Insects and Pests Act, 1927, and shall be construed as one with the principal Act, and the Destructive Insects and Pests Acts, 1877 and 1907, and this Act may be cited together as the Destructive Insects and Pests Acts, 1877 to 1927.

(2) In the application of this Act to Scotland the Board of Agriculture for Scotland shall be substituted for the Minister of Agriculture and Fisheries.

(3) This Act shall not extend to Northern Ireland.

CHAPTER 33.

An Act to amend certain enactments relating to mental defectives. [22nd December 1927.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present